

HOUSE BILL 2451

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 29;  
Title 31 and Title 34, relative to civil law.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-27-303, is amended by adding the following new subsection (b) and redesignating the current subsection (b) and the subsequent subsections accordingly:

(b) This part does not apply to actions pursuant to title 30, chapter 2, part 4.

SECTION 2. Tennessee Code Annotated, Section 31-4-101(c), is amended by deleting the second sentence of the subsection and substituting:

For purposes of this subsection (c), the decedent's gross estate shall be determined by the court in the same manner as the gross estate is determined for federal estate tax purposes pursuant to § 2031(a) of the Internal Revenue Code, 26 U.S.C. § 2031(a); provided, however, that the value of any asset that would not have been part of the decedent's gross estate for inheritance tax purposes in this state, pursuant to title 67, chapter 8, part 3, as applied immediately prior to enactment of § 67-8-318, shall be excluded from the calculation. The value of any life estate or trust for the lifetime benefit of the surviving spouse shall be actuarially determined.

SECTION 3. Tennessee Code Annotated, Section 34-3-104, is amended by deleting the language "The petition for the appointment of a conservator, which shall be sworn, should contain the following:" and substituting:

The petition for the appointment of a conservator, which shall be sworn, shall contain the following:

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.